

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Luis Hernandez,

: Index Number:
: Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against-

:

City of New York, New York City Police Department,
Detective Ugur Bek, Shield 237 of the 740 Command,
Undercover Police Officer # C0357 and New York City
Police Officers John Doe,:
:
:
: Plaintiff's residence is:
: 621 East 105 Street
: Brooklyn, NY 11236

Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Kings County.

Dated: April 13, 2021
Bronx, NY

Yours, etc..

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Detective Ugur Bek, Shield 237 of the 740 Command

Undercover Police Officer # C0357

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF ~~KINGS~~-----X
Luis Hernandez,

Plaintiffs

-against-

City of New York, New York City Police Department,
Detective Ugur Bek, Shield 237 of the 740 Command,
Undercover Police Officer # C0357 and New York City
Police Officers John Doe,Defendants
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: VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Luis Hernandez (hereinafter referred to as "HERNANDEZ") is a resident of New York County, State of New York.
2. That at all times hereinafter mentioned, Detective Ugur Bek, Shield 237 of the 740 Command (hereinafter referred to as "BEK") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Undercover Police Officer, Shield CO357 (hereinafter referred to as "UC 357") was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Police Officers John Doe, the officers involved in the arrest of HERNANDEZ (hereinafter referred to as "DOES") were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or before June 4, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. That on or about July 23, 2020, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about November 19, 2019 at approximately 2:00 PM in the vicinity of 15 Street and 2nd Avenue, Kings County, New York, Plaintiff was handcuffed and arrested by BEK and DOES.

10. That at no time on or about October 23, 2019 did Plaintiff sell a quantity of a controlled substance.

11. That at no time on or about October 23, 2019 did Plaintiff possess a quantity of a controlled substance.

12. That knowing that Plaintiff did not sell or possess a controlled substance UC 357 communicated that he did.

13. That knowing that the information communicated by UC 357 was false and inaccurate, BEK and DOES arrested Plaintiff.

14. That after Plaintiff was arrested he was transported to the 70 precinct.

15. That while Plaintiff was held in the 70 precinct he was subjected to a search and that nothing of an illegal nature was recovered.

16. That while Plaintiff was held in the 70 precinct he was confined to a cell with numerous other male prisoners.

17. That after being held in the 70 precinct for several hours, he was transported to Kings County Criminal Court, located at 120 Schermerhorn Street, Brooklyn, NY.

18. That while Plaintiff was held in Kings County Central Booking, he was confined to a cell with numerous other male prisoners.

19. That on or about November 20, 2019 Plaintiff was arraigned on docket CR-041174-19KN wherein he was charged with Criminal Sale of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Third Degree and Criminal Possession of a Controlled Substance in the Seventh Degree.

20. That at the arraignment, bail was set against Plaintiff wherein he was remanded to the custody of the New York City Department of Corrections.

21. That on and between November 20, 2019 and May 29, 2020 Plaintiff made numerous court appearances until the case was dismissed upon application of the Office of the Kings County Department of Corrections.

22. That on and between November 19, 2019 and June 2, 2020, Plaintiff remained in the custody of the New York City Department of Corrections.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

23. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 22, as if more fully stated herein at length.

24. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

25. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

26. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

27. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

28. That as a result of the Defendants' actions, Plaintiff missed several days from work.

29. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

32. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

36. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton

indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

37. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

38. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, BEK, UC 357 and DOES persisted in their claim that Plaintiff did sell a quantity of a narcotic substance to UC 357 knowing that he had in fact not.

39. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, BEK, UC 357 and DOES persisted in their claim that Plaintiff did possess a quantity of a narcotic substance to UC 357 knowing that he had in fact not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. At all times pertinent hereto, BEK, UC 357 and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

42. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that BEK, UC 357 and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The City of New York and New York City Police Department's failure to provide adequate training and supervision to BEK, UC 357 and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

45. That the City of New York and New York City Police Department were aware that BEK was the subject of a civil rights lawsuit under index number 15CV05799, McMillan v. City of New York et al and despite such, continued to employ BEK.

46. That the City of New York and New York City Police Department were aware that BEK was the subject of a civil rights lawsuit under index number 13CV02685, Valme v. City of New York et al and despite such, continued to employ BEK.

47. That the City of New York and New York City Police Department were aware that BEK was the subject of numerous Civilian Complaint Review Board complaints and despite such, continued to employ BEK.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

48. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47 as if more fully stated herein at length.

49. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

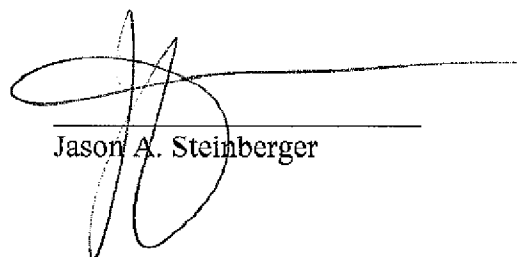
Law Offices of Jason A. Steinberger, LLC

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Attorney for Plaintiffs
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STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: April 13, 2021



Jason A. Steinberger